

Court No. - 46

Case :- WRIT - C No. - 15849 of 2020

Petitioner :- Haridwar Yadav

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Laloo Yadav

Counsel for Respondent :- C.S.C.,Kapil Dev Singh Rathore

Hon'ble Naheed Ara Moonis,J.

Hon'ble Vivek Varma,J.

A request has been made on behalf of learned counsel for the petitioner to adjourn the case for two weeks.

Let the matter be placed on 22.10.2020 in the additional cause list.

Order Date :- 8.10.2020

SKT/-

Court No. - 46

Case :- WRIT - C No. - 15849 of 2020

Petitioner :- Haridwar Yadav

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Laloo Yadav

Counsel for Respondent :- C.S.C.,Kapil Dev Singh Rathore

Hon'ble Naheed Ara Moonis,J.

Hon'ble Vivek Varma,J.

The case is adjourned on the request made by Sri Laloo Yadav, learned counsel for the petitioner.

Let the matter be placed as unlisted in the week commencing 17th November, 2020.

Order Date :- 22.10.2020

Shahnawaz

Court No. - 46

Case :- WRIT - C No. - 15849 of 2020

Petitioner :- Haridwar Yadav

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Laloo Yadav

Counsel for Respondent :- C.S.C.,Kapil Dev Singh Rathore

Hon'ble Naheed Ara Moonis,J.

Hon'ble Vivek Varma,J.

Sri Narendra Kumar Tiwari, learned counsel for the respondent is present on behalf of the respondent.

Passed over on the illness slip of Sri Laloo Yadav, learned counsel appearing on behalf of the petitioner.

Let the matter be placed in the week commencing 7th December, 2020 before the appropriate Bench.

Order Date :- 17.11.2020

Shahnawaz

Court No. - 46

Case :- WRIT - C No. - 15849 of 2020

Petitioner :- Haridwar Yadav

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Laloo Yadav

Counsel for Respondent :- C.S.C.,Kapil Dev Singh
Rathore,Narendra Kumar Tiwari

Hon'ble Naheed Ara Moonis,J.

Hon'ble Vivek Varma,J.

At the request of learned counsel for the petitioner, the case is adjourned for the day.

Let the case be listed in the additional cause list in the week commencing 11.01.2021.

Order Date :- 7.12.2020

Lbm/-

Court No. - 39

Case :- WRIT - C No. - 15849 of 2020

Petitioner :- Haridwar Yadav

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Laloo Yadav

Counsel for Respondent :- C.S.C.,Kapil Dev Singh Rathore,Narendra Kumar Tiwari

Hon'ble Naheed Ara Moonis,J.

Hon'ble Dinesh Pathak,J.

Sri Narendra Kumar Tiwari, learned counsel is present on behalf of the Power Corporation. However, there is an illness slip of Sri Laloo Yadav, learned counsel appearing for the petitioner.

Let the case be placed in the week commencing 18th January, 2021 in the additional cause list.

Order Date :- 11.1.2021

SKM

Case :- WRIT - C No. - 15849 of 2020

Petitioner :- Haridwar Yadav

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Laloo Yadav

Counsel for Respondent :- C.S.C., Kapil Dev Singh Rathore, Narendra Kumar Tiwari

Hon'ble Naheed Ara Moonis, J.

Hon'ble Dinesh Pathak, J.

Heard learned counsel for the petitioner, learned Standing Counsel for respondent no. 1 and Sri N.K.Tiwari, learned counsel for the respondent nos. 2, 3 & 4.

Instant writ petition has been filed with the following reliefs :

"(i) Issue a writ, order or direction in the nature of certiorari quashing/set aside the letter no. 124 of Format-1 dated 10.09.2018 issued by the respondent no. 3.

(ii) Issue a writ, order or direction in the nature of mandamus directing to the respondent no. 3, 4 for connecting electricity connection and correct the electricity bill on the basis of reading of meter of the petitioner or enquire the matter.

(iii) Issue a writ, order or direction in the nature of mandamus directing to the respondents to given the compensation of the petitioner of Rs. 15 Lac.

(iv)

(v)"

Learned counsel for the Power Corporation, at the very outset, submits that in case the petitioner has any grievance with regard to disconnection of electricity or correction of electricity bill, he may approach before the Consumer Grievance Redressal Forum under Clause 7.10(iii) of the U.P. Electricity Supply Code, 2005.

Considering the submissions advanced by learned counsel for the parties, the writ petition is disposed of with the liberty to the petitioner to move a representation raising his grievance before the respondent no. 3 - Executive Engineer, Electricity Distribution Division, Block Second, Anand Nagar/Nautanwa, District - Maharajganj under Clause 7.10(iii) of the U.P. Electricity Supply Code, 2005. In case any such representation is moved by the petitioner, the same shall be considered and decided by the respondent no. 3 strictly in accordance with law within a period of one month from the date of filing of the representation, after affording due opportunity of hearing to him.

Order Date :- 20.1.2021

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